

SENATE No. 790

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act eliminating geographic auto insurance discrimination.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Liz Miranda</i>	<i>Second Suffolk</i>	
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/16/2025</i>

SENATE No. 790

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 790) of Liz Miranda for legislation to eliminate geographic auto insurance discrimination. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act eliminating geographic auto insurance discrimination.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 34J of chapter 90 of the General Laws, as appearing in the 2016
2 Official Edition, is hereby amended by striking out, in line 33, the words “territory and”.

3 SECTION 2. Section 22E of chapter 175 of the General Laws, as so appearing, hereby
4 amended by striking out the first sentence and inserting in place thereof the following sentence:-
5 No insurance company, and no officer or agent thereof in its behalf, shall refuse to issue, renew
6 or execute as surety a motor vehicle liability policy or bond, or any other insurance based on the
7 ownership or operation of a motor vehicle because of age, sex, race, occupation, marital status,
8 zip code, principal place of garaging of the vehicle, or geographical area.

9 SECTION 3. Section 113B of said chapter 175, as so appearing, is hereby amended by
10 striking out, in line 44, the words “or territory”.

SECTION 4. The fifth paragraph of said section 113B of said chapter 175, as so appearing, is hereby amended by inserting after the word “by”, in line 123, the following words:-
zip code, principal place of garaging or geographical area, or by.

SECTION 5. Said section 113B of said chapter 175, as so appearing, is hereby amended by adding the following paragraph:-

The commissioner shall not fix or establish any private passenger motor vehicle insurance rates, premium charges, premium adjustments or classifications of risks based, in whole or in part, on zip code, principal place of garaging, or geographical area.

SECTION 6. Subsection (C) of section 113H of said chapter 175, as so appearing, is hereby amended by striking out the eighth paragraph and inserting in place thereof the following paragraph:-

To control the size of the population of the plan, the plan shall annually provide for classification credits for those companies voluntarily writing private passenger automobile insurance within those classifications that would otherwise be disproportionately represented in the plan. The size of the credits shall be such as to enhance the prospects that no classification is disproportionately represented in the plan.

SECTION 7. Section 4 of chapter 175E, as so appearing, is hereby amended by striking out, in line 22, the words “in the area”.

SECTION 8. Subsection (d) of said section 4 of said chapter 175E, as so appearing, is hereby amended by striking out, in lines 57 and 58, the words “which shall include a designation of not less than fifteen territories”.

SECTION 9. The fifth paragraph of said subsection (d) of said section 4 of said chapter 175E, as so appearing, is hereby amended by inserting after the word “by”, in line 68, the following words:- zip code, principal place of garaging or geographical area, or by.

SECTION 10. Section 5 of said chapter 175E, as so appearing, is hereby amended by striking out, in line 4, the words “to any territory or”.

SECTION 11. Said section 5 of said chapter 175E, as so appearing, is further hereby amended by striking out, in line 11, the words “or territory”.

SECTION 12. Section 6 of said chapter 175E, as so appearing, is hereby amended by striking out, in line 3, the words “, in any territory,”.

SECTION 13. Said section 6 of said chapter 175E, as so appearing, is hereby further amended by striking out, in lines 17 and 22, the words “in any territory or”.